

proposed Conservatee within the second degree; and (2) Care Plan (Judicial Council form GC-355/356).

This is a conservatorship of the person and estate. There is no accounting on file as required pursuant to Probate Code section 2620, subdivision (a). All accounting documents (or a Request for Waiver of Accounting, Form GC-410) must be filed at least 30 days prior to the next hearing. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Joel V. Benson v. Lisa Benson et al

25CV001556

STATUS CONFERENCE RE: APPRAISER

APPEARANCE REQUIRED

.....
Firefly Health Corp v. Trulieve Inc. et al

26CV000476

MOTION FOR RECONSIDERATION OF ORDER GRANTING MOTION TO COMPEL ARBITRATION AND REQUEST FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Firefly Health Corp. dba Velvet Cannabis (Firefly) moves, pursuant to Code of Civil Procedure sections 1008, subdivision (a), for reconsideration of the Court's Order After Hearing Granting Defendant's Motion to Compel Arbitration, filed August 5, 2026 (8/6 OAH). Firefly also moves, pursuant to Code of Civil Procedure sections 473, subdivision (a)(1), and 576, and California Rules of Court, rule 3.1324, for leave to file a Second Amended Complaint.

"When an application for an order has been made to a judge, or to a court, and . . . granted . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc., § 1008, subd. (a) (Section 1008).)

“The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*) “A motion for reconsideration must be based on new or different facts, circumstances, or law. [Citation.] ‘To merit reconsideration, a party must give a satisfactory reason why it was unable to present its ‘new’ evidence at the original hearing.’ [Citation.]” (*McPherson v. City of Manhattan Beach* (2000) 78 Cal.App.4th 1252, 1265.)

The Court is persuaded that it retains jurisdiction to reconsider the 8/6 OAH pursuant to Code of Civil Procedure section 1008.

Firefly, through the Supporting Memorandum, is vague as to the precise “different facts, circumstances, or law” the instant application is based upon. What is clear is that Firefly seeks to file an amended complaint to omit certain allegations of fact set forth in the operative First Amended Complaint (FAC) which the Court relied on in making the 8/6 OAH.

Firefly asserts that these allegations were incorrect when made. As Firefly notes, however, it specifically made this argument – that allegations in the FAC were inaccurate – in its Opposition to the Motion to Compel Arbitration, and at hearing on that Motion. As such, the fact that the allegations in the FAC were inaccurate is neither new nor different from the facts presented through the original Opposition.

On Reply, Firefly attempts to argue around the foregoing circumstance by claiming that the “new fact” – the fact unknown until *after* August 6, 2026 – is that the purportedly erroneous allegations were caused by counsel’s filing of the wrong draft of the pleading. “It is counsel’s post-hearing discovery that the operative FAC was an earlier draft selected during the April e-filing and that its shorthand inaccurately conflated Firefly with Velvet Holdings.” (Reply at 3:22-24.) This is, arguably, consistent with Counsel’s declaration that “I first discovered that the wrong version had been filed when reviewing the case file immediately after the hearing on the Motion to Compel Arbitration.” (Declaration of Jasun C. Molinelli at ¶ 6 (Molinelli Decl.).)

The fact that counsel used the wrong draft, however, is wholly immaterial to the issues raised in the Motion to Compel Arbitration. The purportedly erroneous allegations of the FAC *are* potentially material to those issues. As discussed above, however, it is clear that Firefly was aware of the purportedly erroneous nature of those specific allegations at the time it drafted its Opposition to that Motion. As such, the existence of these purportedly erroneous allegations is not a new or different fact upon which reconsideration may be had.

Firefly gives no reason, in support of the instant motion, why it was unable to present each argument set forth here, and to request leave to amend the operative complaint, through its Opposition to the Motion to Compel. As such, it appears the Court is without jurisdiction to consider the instant motion. (Section 1008, subd. (e) [“This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and . . . [n]o application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section”].)

Even if the Court were to find that the Molinelli Decl. identifies new or different facts, and adequately explains why they could not have been raised earlier, Firefly fails to persuade the Court that permitting it to omit these allegations from a Second Amended Complaint would compel a different conclusion on the Motion to Compel Arbitration.

While the moving papers cite to, and discuss, a proposed Second Amended Complaint, none is included in the moving or reply papers. There is no Exhibit A to either the Support Memorandum or to the Molinelli Decl. in the Court's files. As such, Firefly fails to persuade the Court that both (a) the proposed amendment(s) would *support* a denial of the Motion to Compel Arbitration *and* (b) such denial would be appropriate in light of the sham pleading doctrine.

Based on the foregoing, the request for reconsideration of the 8/6 OAH is DENIED.

Because the order compelling Firefly to arbitrate the action stands, the request for leave to amend the operative complaint should be directed to the arbitrator and not the Court.

****at 1:30 p.m.****

American Canyon I. LLC v. City of American Canyon et al

26CV001286

DEFENDANT CITY OF AMERICAN CANYON'S DEMURRER TO COMPLAINT OF
PLAINTIFF AMERICAN CANYON 1, LLC

TENTATIVE RULING: The parties are ordered to appear and be prepared to address, at a minimum, the following questions:

1. In light of the June 16, 2025 Resolution No. 2026-55 (the "June Resolution"), is the Petition moot?
2. Assuming the Court finds Petitioner's challenge to the decisions taken through the ULL Agreement and HLAT Tax Sharing Agreement (and corresponding County resolutions) are moot, are any of the remaining causes of action ripe for adjudication? For example, are the ULL Agreement, as amended, and the HLAT Tax Sharing Agreement exempt from CEQA and/or "projects" under CEQA?
3. Since the ULL Agreement has been clarified by the June Resolution, wouldn't the best course of action be to allow Petitioner leave to amend the Petition, assuming *arguendo* it can state a ripe claim?

A. PROCEDURAL MATTERS

Respondents and Defendants City of American Canyon and its City Council ("City") demur, pursuant to Code of Civil Procedure section 430.10 subdivisions (e) and (f), to the Verified Petition and Complaint ("Petition") filed by Petitioner and Plaintiff American Canyon, LLC ("AC-1"). On August 14, 2026, Real Parties in Interest the Hess Collection Winery,